

**DISPOSITION OF CHARGES**

PD 465-142A (Rev. 1-05)

CASE NO
10051956
BOOK & PAGE NO
Page 1 of 1
PERSONNEL ORDER NO

SPECIFICATIONS AGAINST RANK/SURNAME		FIRST	LAST	COMMAND
Detective Rivera,		Joseph		Warrant Section
SHIELD NO.	TAX REGISTRY NO		DATE APPOINTED	
00647	939321		July 11, 2005	
RANK/NAME OF COMPLAINANT				COMMAND
General Counsel Matthew Kadushin				CCRB - Administrative Prosecution Unit
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDES
April 8, 2022		July 22, 2025		July 22, 2025

TRIAL COMMISSIONER

Honorable Vanessa Pacio-Lince

SPECIFICATIONS	OFFENSE	RECOMMENDED PENALTY	
		PLEA ☐	TRIAL ☒
1. Detective Joseph Rivera, on or about March 18, 2020, at approximately 0530 hours, while assigned to the Warrant Section and on duty, in the vicinity of § 87(2)(b) Kings County, abused his authority as a member of the New York City Police Department, in that he searched § 87(2)(b) Kings County without sufficient legal authority.	§ 87(2)(b)		It is recommended that Respondent forfeit three (3) vacation days for each violation, to run concurrently.
2. Detective Joseph Rivera, on or about March 18, 2020, at approximately 0530 hours, while assigned to the Warrant Section and on duty, in the vicinity of § 87(2)(b) Kings County, abused his authority as a member of the New York City Police Department, in that he entered § 87(2)(b) Kings County without sufficient legal authority.	§ 87(2)(b)		

Reviewed by Deputy Commissioner of Trials

DEPUTY COMMISSIONER

8/26/25
DATE

Police Commissioner's Approval:

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

POLICE COMMISSIONER

10/22/25
DATE



POLICE DEPARTMENT

August 26, 2025

-----X

In the Matter of the Charges and Specifications	:	Case No.
- against -	:	C-031956
Detective Joseph Rivera	:	
Tax Registry No. 939321	:	
Warrant Section	:	

-----X

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU: Claudia Avin & Ashley Baxter, Esqs.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent: Marissa Gillespie, Esq.
Karasyk & Moschella, LLP
233 Broadway, Suite 2340
New York, NY 10279

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Detective Joseph Rivera, on or about March 18, 2020, at approximately 0530 hours, while assigned to the Warrant Section and on duty, in the vicinity § 87(2)(b) Kings County, abused his authority as a member of the New York City Police Department, in that he searched § 87(2)(b) Kings County without sufficient legal authority.

P.G. 203-10, Page 1, Paragraph 5
(Now encompassed by
A.G. 304-06, Page 1, Paragraph 1)

PUBLIC CONDUCT–
PROHIBITED CONDUCT

New York City Administrative Code § 14-173(h)

2. Detective Joseph Rivera, on or about March 18, 2020, at approximately 0530 hours, while assigned to the Warrant Section and on duty, in the vicinity § 87(2)(b) Kings County, abused his authority as a member of the New York City Police Department, in that he entered § 87(2)(b) Kings County without sufficient legal authority.

P.G. 203-10, Page 1, Paragraph 5
(now encompassed by
A.G. 304-06, Page 1, Paragraph 1)

PUBLIC CONDUCT–
PROHIBITED CONDUCT

New York City Administrative Code § 14-173(h)

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on July 22, 2025.

Respondent, through his counsel, entered a plea of Not Guilty to the charged misconduct. The

Civilian Complaint Review Board (hereinafter “CCRB”) called § 87(2)(b) and § 87(2)(b)

as witnesses. Respondent called Sergeant Michael Connizzo and testified on his own

behalf. A stenographic transcript of the trial record has been prepared and is available for the

Police Commissioner’s review. Having evaluated all of the evidence in this matter, I find

Respondent Guilty of Specifications 1 and 2 and recommend a penalty of three (3) vacation days.

ANALYSIS

The following undisputed facts were presented at trial.

On March 18, 2020, Respondent was working in his capacity as a member of the Manhattan Warrants Section – Joint Absconder Warrant Squad (also known as “JAWS”). At about 0530 hours, Respondent and his team entered § 87(2)(b) Brooklyn, NY. They were looking for § 87(2)(b) who absconded parole; a warrant had been issued for his arrest. Respondent knocked on the door of the § 87(2)(b) apartment which was answered by § 87(2)(b) (hereinafter “§ 87(2)(b)”). Respondent informed her that he was looking for § 87(2)(b) (hereinafter “§ 87(2)(b)”) and showed her the parole warrant. § 87(2)(b) replied that she did not recognize that name and did not believe that person lived in the multi-family dwelling. Nonetheless, § 87(2)(b) allowed Respondent and the other officers to enter her home.

After the officers searched § 87(2)(b) living area, she escorted them to the § 87(2)(b) unit where her brother and great-uncle reside. The officers proceeded to enter and search her brother’s unit. After these searches yielded negative results, the officers asked to search the § 87(2)(b) unit. § 87(2)(b) explained that a tenant by the name of § 87(2)(b) (hereinafter “§ 87(2)(b)”) rented the apartment on the § 87(2)(b) so they would have to obtain her permission to enter.

Respondent and other officers knocked on § 87(2)(b) door, informed her of why they were there and requested her permission to enter and search the apartment. § 87(2)(b) denied knowing anyone by the name of § 87(2)(b). § 87(2)(b) boyfriend was staying with her at the time and when he heard the conversation, he asked § 87(2)(b) what was going on.

Respondent and the other officers inquired about the male voice and entered § 87(2)(b) apartment to investigate. Their investigation yielded negative results.

After searching all units inside of § 87(2)(b) and not finding § 87(2)(b) they left the premises. Before leaving, Respondent handed § 87(2)(b) a business card.

At issue in this case is: (1) whether Respondent's search of the main residence was lawful; and (2) whether Respondent entered § 87(2)(b) apartment lawfully. Based upon the credible relevant evidence in the record, I find that Respondent failed to comply with the New York City Right To Know Act regarding consent to search, in that he did not advise § 87(2)(b) or § 87(2)(b) that they could refuse permission to enter or search their respective homes.

CCRB's Case:

§ 87(2)(b) testified that on March 18, 2020, she resided in the § 87(2)(b) unit of her family's multi-family dwelling located at § 87(2)(b) in Brooklyn. According to her, the brownstone has § 87(2)(b) floors. § 87(2)(b) described the dwelling as having a § 87(2)(b) which would be considered the § 87(2)(b) floor, a § 87(2)(b) floor unit which is where she resides, and separate units on the § 87(2)(b) and § 87(2)(b) floor. She stated that the main entrance is on the § 87(2)(b) floor. § 87(2)(b) brother and great-uncle reside on the § 87(2)(b) floor. The building also has an apartment on the § 87(2)(b) which is occupied by a tenant. (Tr. 11-12)

On March 18, 2020, at approximately 0530 hours, § 87(2)(b) was asleep in her bedroom when she was awakened by knocking at her door. When she arrived at the entrance to her unit, § 87(2)(b) saw two officers in the vestibule of her multi-family brownstone, knocking on the door to her unit. The officers had flashlights illuminated and aimed toward the interior of the residence. (Tr. 12-13)

When § 87(2)(b) opened the door, Respondent introduced himself and informed her that they were there looking for someone for whom they had a warrant. Respondent showed her a document marked "warrant" in bold red letters. According to § 87(2)(b) the warrant had a photograph of the person they were looking for, his name (§ 87(2)(b)) and her address. § 87(2)(b) informed Respondent that she does not know § 87(2)(b) nor does she believe that anyone by that name resides there. § 87(2)(b) explained that she let the officers in because she was concerned about her safety and assumed that a warrant, in general, meant police had a legal right to "do what they need to do." Thus, § 87(2)(b) gave consent to the officers to enter her home. Neither Respondent nor the other officers informed § 87(2)(b) of her right to deny them consent to enter and search the premises. (Tr. 13-15, 20)

§ 87(2)(b) testified that the officers entered her home and proceeded to shine a flashlight into each room and manipulate items, such as curtains, to search areas where a person could be hiding. § 87(2)(b) led the way through the officers' search of the first and § 87(2)(b) floors. § 87(2)(b) stated that her brother and uncle occupied the § 87(2)(b) unit, so when the officers completed the search of her unit, she escorted them to the unit on the § 87(2)(b) floor. According to § 87(2)(b) when they reached the § 87(2)(b) floor, the officers became verbally aggressive with her brother when he requested to see the warrant. One of the officers replied, "we already showed her, you don't need to see." (Tr. 15-17)

§ 87(2)(b) remained on the § 87(2)(b) floor as the officers went upstairs to the § 87(2)(b) where a tenant, § 87(2)(b) resided. At that point, § 87(2)(b) could not see the officers, but she heard them speaking with § 87(2)(b) before they entered her apartment. § 87(2)(b) estimated the officers spent "five to ten minutes on each level" of the brownstone. (Tr. 19-20)

During cross-examination, § 87(2)(b) conceded that she “invited” Respondent into her home after he explained why he was there. She described her interaction with Respondent as “pleasant,” “cordial” and “respectful.” § 87(2)(b) also acknowledged that upon conclusion of the search, Respondent provided her with his business card. (Tr. 25, 27-28, 30)

§ 87(2)(b) testified that on the date of the incident, she lived in the § 87(2)(b) apartment at § 87(2)(b). On the morning in question, § 87(2)(b) was asleep in bed when she was “awakened by loud noises...loud thumping.” (Tr. 37) She rose from her bed, looked out the window before opening her apartment door to listen to what was going on. She then closed the door and retreated inside her apartment. § 87(2)(b) then heard someone knocking at her door. She asked who was at the door and received no response. (Tr. 37-38)

When she opened the door, § 87(2)(b) observed three to four officers in plainclothes, all armed. An officer informed her that they were looking for § 87(2)(b) showed her a picture and asked whether she knew him. § 87(2)(b) responded in the negative, indicating that no one by that name resided in her home, nor did she recognize the name or the picture. While § 87(2)(b) was speaking with the officers, her boyfriend, who had been asleep in bed, made a noise. An officer inquired about the male inside her home, and she told them that it was her boyfriend, not § 87(2)(b) (Tr. 39-40)

§ 87(2)(b) posited that when the officers heard a male voice inside the apartment, they “got excited” and stepped forward to enter the threshold of her doorway. She claims that the officers “kind of pushed past [her]” to enter the apartment and she “stepped to the side” and moved out of their way. § 87(2)(b) asserted that she did not verbalize her consent. § 87(2)(b) added that she informed them that they were not supposed to be inside her home and asked them

whether they had a warrant. The officers showed her a picture of the person they were looking for, but she did not see a warrant. (Tr. 40-41)

Once the officers were inside her apartment, § 87(2)(b) boyfriend came out of the bedroom and spoke with them. § 87(2)(b) estimated that the officers spent approximately fifteen minutes looking around her “open” concept apartment before they left. She stated that they did not offer her a business card or ask her to sign any documents before leaving. (Tr. 42-43)

On cross-examination, § 87(2)(b) was challenged about her claim that she did not give the officer permission to enter her apartment. § 87(2)(b) acknowledged that when she was initially interviewed by CCRB on April 8, 2020, she told the investigator that on the date of the incident the officers said they had a warrant, so she let them inside her apartment. At the hearing, however, she maintained that she did not verbalize her consent to the officers’ entry, but acquiesced that she also did not expressly say no. (Tr. 51-52)

Respondent’s Case:

At trial, Respondent testified that he has a very limited recollection of the above-mentioned incident which occurred more than five years ago. Thus, he could not verify or contradict § 87(2)(b) or § 87(2)(b)’s versions of events. Moreover, although Respondent’s documentation (DD5s) of the investigative steps he took to apprehend § 87(2)(b) are quite detailed (*see* CCRB Ex. 1), there is no documentation with respect to the events that transpired at § 87(2)(b). Although Respondent did not deny that he was present at that location on the date and time in question, he has no independent recollection of being there. According to Respondent, he relied upon what he was told by his supervisor, Sergeant Connizzo and another officer who was on his team that day. (Tr. 63-64, 78)

Respondent described the general procedures that he employs when conducting warrant investigations. He explained that when conducting an investigation at a particular location, he knocks on the door, explains why he is there to whomever opens the door and then seeks consent to enter and look around the location. Respondent stated that it is not part of his routine practice as a member of JAWS to ask a person who has granted him verbal consent, to fill out a "consent form." Respondent added that consent forms are used for "looking for evidence, search every part of the apartment...you know places where a person can hide. In the case of a search warrant, yes, a consent form could be in play. But searching for a wanted person by New York State for [a] parole absconder, no. In this case, no." (Tr. 66-67)

On cross-examination, Respondent was asked whether he is familiar with the provisions of NYC Administrative Code Section 14-173, and he responded: "yes." Respondent further admitted that he is aware that absent a search warrant or exigent circumstances, a person who is subjected to a search, must be informed that he/she has the right to refuse consent to the search of their home. (Tr. 78)

Sergeant Michael Connizzo testified that at time of the alleged incident, he was working as a supervising sergeant of JAWS. In this capacity, he was responsible for supervising all the activities of the members of his team, including Respondent. Sergeant Connizzo recalled that he assigned the case involving § 87(2)(b) to Respondent in January 2020 and it was a lengthy investigation. (Tr. 83-85)

Sergeant Connizzo's recollection of the incident that occurred on March 18, 2020, at § 87(2)(b) was "vague," but from what he could recall, he and his team knocked on the door early in the morning and a young female answered. They explained the purpose of their visit and the female seemed confused at first, but once they provided her with further

information, she allowed them into her home. Sergeant Connizzo testified that nothing out of the ordinary occurred at that location on that day. Moreover, he confirmed that as the supervisor on scene that day, he would have had to authorize the entry and if anything was “improper,” it would have been his decision to call off or discontinue the investigation. (Tr. 86-88)

Although Sergeant Connizzo could not remember whether § 87(2)(b) was specifically told that she did not have to let the officers in, he did state that it is “not common practice” for the officers on his team to inform individuals that they do not have to consent to officers entering their home. (Tr. 92) He was under the impression that § 87(2)(b) was a “third party location,” meaning that it was not § 87(2)(b) primary residence, so they treated the entry as such. According to Sergeant Connizzo’s trial testimony: “We treated it as a third-party location. We spoke to the young lady at the door; she let us in. It seemed to be a typical investigation and suspect search as far as what I do every day for the last eight years. No issues.” (Tr. 96)

Specification 1: Search of Main Residence at § 87(2)(b)

Specification 1 charges Respondent with unlawfully searching § 87(2)(b) where § 87(2)(b) resides at § 87(2)(b). It is undisputed that § 87(2)(b) consented to Respondent’s entry and search of her home, after she was informed that the officers had a parole warrant for an absconded parolee. It is also uncontested that Respondent did not document the verbal exchange regarding consent. At issue is whether Respondent followed proper protocol in obtaining voluntary consent before conducting the search of § 87(2)(b) residence.

The defense argues that § 87(2)(b) verbally consented to the search, and that even if she had been informed that she could refuse consent, she would have consented anyway because of her concern that someone she did not know was using her address without her permission.

Indeed, § 87(2)(b) acknowledged giving Respondent verbal permission after being shown the warrant. However, Section 212-11 of the Patrol Guide requires an officer to take additional steps when asking for consent to search: “When seeking consent, make clear that the search will not occur if the person does not consent. For example, in a non-threatening manner and without making promises, you may ask the following: *‘I can only search you, if you consent. Do you understand? May I search you?’*” This Patrol Guide procedure further states:

If you are seeking consent to search, you must video record the request and the person’s response, if you have a Body - Worn Camera. Document the time, location, and date of such request, consent, refusal, and search (if performed), and the apparent race, ethnicity, gender, and age of the person who was the subject of such request and search, and your name, precinct, tax number and/or shield number on the Common Law Right of Inquiry – Consent Search Report.

At the time of the search, § 87(2)(b) was behaving in a cooperative manner toward the officers. Therefore, there were no exigent circumstances preventing Respondent from explaining to § 87(2)(b) that no search would occur if she refused her consent. Since Respondent failed to do so, § 87(2)(b) permission to search was not fully informed. Additionally, since Respondent was not issued a body-worn camera at the time of this incident, he was responsible for documenting his communication with § 87(2)(b) pursuant to the Patrol Guide, in order to prove that her consent was voluntarily, knowingly and intelligently given. Unfortunately, there was no documentation for this interaction in any of Respondent’s DD5s, and he did not prepare a consent search report. Based upon the foregoing, I find Respondent Guilty of Specification 1.

Specification 2: Entry of § 87(2)(b) Apartment at § 87(2)(b)

At trial, § 87(2)(b) testified that she did not consent to Respondent’s entry into her home. (Tr. 41) She asserted that after the officers heard her boyfriend’s voice inside the apartment, they “got excited” and “kind of pushed past” her to get inside. § 87(2)(b) further

elaborated that when the officers “stepped forward” to enter her apartment, she “moved out of the way.” (Tr. 40)

§ 87(2)(b) however, recounted a slightly different version of events when she was interviewed by CCRB on April 8, 2020. She conceded that when the officers told her they had a warrant, she “let them inside the apartment, in the living room” (Tr. 51-52) In fact, § 87(2)(b) conceded that she told the officers: “You can have a look around and see everything in this open apartment,” at her CCRB interview. (Tr. 52) As noted above, § 87(2)(b) statements to CCRB were made five years ago and closer in time to the date of the incident.

The Tribunal is mindful that over time a witness’ memory can vary regarding specific details of an event. However, this discrepancy, regarding a material fact, not only casts doubt on the reliability of § 87(2)(b) narrative, but results in ambiguity regarding the issue of consent to enter. As such, there is insufficient evidence in this record to prove the voluntariness of her consent.

Despite the uncertainty surrounding the circumstances of Respondent’s entry, what is clear from the record is that Respondent did not inform § 87(2)(b) about her right to refuse consent. Even if Respondent construed § 87(2)(b) actions of “stepping aside” as implicit consent to enter, that is insufficient to satisfy the requirement of the Patrol Guide’s procedure for requesting consent to search. Thus, for similar reasons as stated in the previous section, I find Respondent Guilty of Specification 2.

PENALTY

In order to determine an appropriate penalty, this tribunal, guided by the Department’s Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent’s

employment history also was examined. *See* 38 RCNY § 15-07. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on July 11, 2005, has been found guilty of the two specifications charged. CCRB argued that this search and entry involved substantial physical presence. The presumptive penalty for unlawful search/entry involving substantial physical presence and/or remaining on the premises is ten days and the mitigated penalty is training. Hence, CCRB requested ten penalty days for each specification to run consecutive for a total of twenty penalty days. This Tribunal disagrees with CCRB's assessment of the search/entry and finds their penalty recommendation excessive under the circumstances. The Disciplinary Matrix has a separate category for this type of violation – Failure to Comply with the Right to Know Act Regarding Consent to Search – and the presumptive penalty is three days. The Tribunal opines that under these specific circumstances; this is the appropriate sanction for Respondent's actions.

Respondent has no formal disciplinary record and has been awarded multiple medals and a Commendation in recognition of his police work. At trial, his former supervisor, Sergeant Connizzo, spoke highly of Respondent's work ethic and investigative skills. Sergeant Connizzo testified that he has known Respondent for over six years and holds him in high regard. He stated: "Joe was great. One of the best detectives I had. His operation performance evaluations were all fives. That's the highest you can get." (Tr. 89) Moreover, § 87(2)(b) described her interaction with Respondent as "pleasant," "cordial" and "respectful." § 87(2)(b) also acknowledged that upon conclusion of the search, Respondent provided her with his business card. (Tr. 27-28, 30)

The two specifications for which Respondent has been found guilty involve a search and entry into two units while attempting to execute a parole warrant. It is undisputed that Respondent asked § 87(2)(b) for permission before conducting a search of her home. Moreover, he provided her with his business card at the conclusion of the search. Respondent's failure to advise § 87(2)(b) that she could refuse permission to search was a procedural error, but it did not appear to be a deliberate effort on his part to violate her rights. Rather, the goal was to investigate and determine as quickly as possible whether the subject of the parole warrant was in her home.

Similarly, Respondent's entry of § 87(2)(b)'s apartment was not extensive. He did not search her home looking for evidence of criminality; rather, he merely searched in places where a person might hide. Moreover, it is plausible that Respondent reasonably construed § 87(2)(b)'s action of stepping aside to let the officers enter as consent. Nonetheless, Respondent was responsible for informing § 87(2)(b) of her right to refuse consent and here, as with § 87(2)(b), he failed to do so.

Indeed, under these specific circumstances, the failure to inform the complainants of their right to refuse consent is akin to a technical violation that does not warrant a severe penalty. Taking into account the totality of the facts in this matter, including Respondent's strong record with the Department, I recommend that Respondent a penalty of three (3) vacation days for each violation, to run concurrently.

APPROVED
OCT 22 2025
Jessica S. Tisch
JESSICA S. TISCH
POLICE COMMISSIONER

Respectfully submitted,

Vanessa Facio-Lince
Vanessa Facio-Lince
Assistant Deputy Commissioner Trials



ERIC L. ADAMS
MAYOR

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Dr. MOHAMMAD KHALID
INTERIM CHAIR

August 25, 2025

Jessica S. Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: Detective Joseph Rivera
Disciplinary Case Number:
2022-25097

Dear Commissioner Tisch:

The above-referenced case was tried on July 22, 2025, by the undersigned and Ashley Baxter, Esq., for the New York City Civilian Complaint Review Board (hereinafter "CCRB"), and pursuant to the Memorandum of Understanding between the CCRB and the New York City Police Department.

Respondent, Detective Joseph Rivera, was charged with the following:

1. Detective Joseph RIVERA, on or about March 18, 2020, at approximately 0530, while assigned to Warrant Section and on duty, in the vicinity of § 87(2)(b) Kings County, abused his authority as a member of the New York City Police Department, in that he searched § 87(2)(b) Kings County without sufficient legal authority.
P.G. 203-10, Page 1, Paragraph 5 PUBLIC CONDUCT—(Now encompassed by PROHIBITED CONDUCT A.G. 304-06, Page 1, Paragraph 1)
New York City Administrative Code § 14-173(h)
2. Detective Joseph Rivera, on or about March 18, 2020, at approximately 0530 hours, while assigned to the Warrant Section and on duty, in the vicinity of § 87(2)(b) Kings County, abused his authority as a member of the New York City Police Department, in that he entered § 87(2)(b) Kings County without sufficient legal authority.

The CCRB has reviewed the August 8, 2025, draft decision of Assistant Deputy Commissioner - Trials (hereinafter, “ADCT”), Vanessa Facio-Lince. We respectfully submit the following comments regarding the draft decision pursuant to *Fogel v. Board of Education*, 48 A.D.2d 925 (2d Dept. 1975).

The Court found Respondent Rivera Guilty of Specification One (1); and Specification Two (2). It is respectfully requested that you accept Assistant Deputy Commissioner Facio-Lince’s findings on the Specifications for the reasons enumerated below. CCRB also asks that you reject ADCT Facio-Lince’s recommended penalty of the forfeiture of three (3) vacation days and instead impose the mitigated penalty of ten (10) days for both specifications to run consecutively for a total forfeiture of twenty (20) vacation days.

Exhibits

CCRB’s Exhibit

1. Detective Rivera’s DD5s

CCRB’s Witnesses

1. § 87(2)(b)
2. § 87(2)(b)

RESPONDENT IS GUILTY OF SPECIFICATIONS ONE AND TWO

Specification 1: Search of § 87(2)(b)

We agree with the Tribunal’s decision finding Detective Rivera guilty of Specification One (1). (Decision at 2). Detective Rivera failed to follow proper protocol by obtaining § 87(2)(b) voluntary, knowing, and intelligent consent before searching her residence at § 87(2)(b). The NYC Administrative Code Section 14-173 is clear that when obtaining consent to conduct a search, officers must:

(a)(1) – articulate, using plain and simple language delivered in a non-threatening manner, that the person who is the subject of the search is being asked to voluntarily, knowingly, and intelligently consent to the search, and explain that the search will not be conducted if the person refuses to consent to the search; and (b)(2) – document the time, location, and date of such search, and the apparent race/ethnicity, gender, and age of the person who was the subject of such search, and such officer’s name, precinct, and shield number. (NYC Administrative Code Section 14-173).

Detective Rivera also failed to comply with Section 212-11 of the Patrol Guide which requires officers to make clear to persons that the search will not be conducted if the person does not consent. The fact that Detective Rivera was cordial and respectful and that he gave § 87(2)(b) a business card at the conclusion of the search does not negate his compliance with proper protocol. We agree with ADCT Facio-Lince that "... there were no exigent circumstances preventing Respondent from explaining to § 87(2)(b) that no search would occur if she refused her consent. Since Respondent failed to do so, § 87(2)(b) permission to search was not fully informed." (Decision at 10). In addition, Detective Rivera failed to document his communication with § 87(2)(b) as required by the Patrol Guide and NYC Administrative Code Section 14-173. Detective Rivera was not equipped with a body worn camera and his visit to § 87(2)(b) was not documented in any of Respondent's DD5s. (Decision at 10). Notably, at trial Detective Rivera testified that he documented all the steps that he took in his investigation to find and arrest § 87(2)(b). However, § 87(2)(b) not documented. (CCRB Ex. 1; Tr. at 103).

Specification 2: Entry of § 87(2)(b) Apartment at § 87(2)(b)

We agree with the Tribunal's decision finding Detective Rivera guilty of Specification Two (2) (Decision at 2). Detective Rivera failed to comply with the Patrol Guide and NYC Administrative Code Section 14-173 by informing § 87(2)(b) that she had the right to refuse consent. (Decision at 11). There were no exigent circumstances preventing Respondent from explaining to § 87(2)(b) that she could refuse consent.

CONCLUSION

Therefore, based on the analysis above, it is respectfully requested that the findings in the proposed draft decision with regard to Respondent Rivera be approved. The evidence strongly supports the finding of guilt on the charged Specifications. Based on the presented arguments above, Detective Rivera is Guilty of Specifications One (1) and Two (2) and the CCRB recommends the forfeiture of ten (10) penalty days for Specification One (1) and Ten (10) penalty days for Specification Two (2), both to run consecutively for a total forfeiture of twenty (20) vacation days.

Respectfully submitted,

Claudia Avin

Claudia Avin, Esq.

Deputy Chief Prosecutor

NYC Civilian Complaint Review Board

cc: Marissa Gillespie, Esq.
Karasik & Moschella, LLC
255 Broadway, 32nd Floor
New York, NY 10007